

ENTERPRISE SAAS AND SERVICE LEVEL AGREEMENT

This Agreement is entered into by and between NovaScale Cloud Systems Inc. (Provider) and Horizon Media Group LLC (Customer).

1. UPTIME COMMITMENT AND AVAILABILITY. Provider warrants that the SaaS Platform shall achieve ninety-nine point nine percent (99.9%) system availability during each calendar month, excluding scheduled maintenance windows.

2. SCHEDULED MAINTENANCE NOTIFICATION. Provider shall provide at least seventy-two (72) hours advance electronic notice for all scheduled downtime, which shall occur only between 00:00 and 04:00 UTC on weekends.

3. SERVICE LEVEL CREDITS. If monthly uptime falls below ninety-nine percent (99.0%), Customer is entitled to a fifteen percent (15%) service credit applied against the subsequent monthly billing invoice.

4. DATA PROTECTION AND SECURITY AUDITS. Provider shall maintain SOC 2 Type II compliance and encrypt all Customer data in transit and at rest using AES-256 encryption.

5. UNILATERAL CUSTOMER INDEMNIFICATION. Customer shall defend, indemnify, and hold harmless Provider from all third-party claims, liabilities, and legal fees arising from Customer's transmitted content.

6. AGGREGATE MONETARY LIABILITY CAP. Provider's total aggregate liability under this agreement is strictly capped at the total subscription fees paid by Customer during the prior twelve (12) months.

7. TERMINATION FOR CAUSE. Either party may terminate immediately upon written notice if the other party commits a material breach and fails to cure within thirty (30) days of written demand.